CHAPTER 19 Vice-President

The Vice-President occupies the second highest office in the country. He/she is accorded a rank next to the President in the official warrant of precedence. This office is modelled on the lines of the American Vice-President.

ELECTION

The Vice-President, like the President, is elected not directly by the people but by the method of indirect election. He/she is elected by the members of an electoral college consisting of the members of both Houses of Parliament.[1] Thus, this electoral college is different from the electoral college for the election of the President in the following two respects:

1. It consists of both elected and nominated members of the Parliament (in the case of president, only elected members).

2. It does not include the members of the state legislative assemblies (in the case of President, the elected members of the state legislative assemblies are included). Explaining the reason for this difference, Dr. B.R. Ambedkar observed:[2]

"The President is the head of the State and his/her power extends both to the administration by the Centre as well as to the states. Consequently, it is necessary that in his/her election, not only members of Parliament should play their part, but the members of the state legislatures should have a voice. But, when we come to the Vice-President, his/her normal functions are to preside over the council of states. It is only on a rare occasion, and that too for a temporary period, that he/she may be called upon to assume the duties of the president. That being so, it does not seem necessary that the members of the state legislatures should also be invited to take part in the election of the Vice-President".

But, the manner of election is same in both the cases. Thus, the Vice-President's election, like that of the President's election, is held in accordance with the system of proportional representation by means of the single transferable vote and the voting is by secret ballot.

All doubts and disputes in connection with election of the Vice-President are inquired into and decided by the Supreme Court whose decision is final. The election of a person as Vice-President cannot be challenged on the ground that the electoral college was incomplete (i.e., existence of any vacancy among the members of electoral college). If the election of a person as Vice-President is declared void by the Supreme Court, acts done by him/her before the date of such declaration of the Supreme Court are not invalidated (i.e., they continue to remain in force).

The various vice-presidential elections held so far are summarised in Table 19.1.

Table 19.1 Elections of the Vice-Presidents (1952–till now)